

**SUBSTITUTE FOR  
HOUSE BILL NO. 4909**

A bill to amend 1980 PA 299, entitled  
"Occupational code,"  
by amending section 1205a (MCL 339.1205a), as added by 2020 PA 20.

**THE PEOPLE OF THE STATE OF MICHIGAN ENACT:**

1       Sec. 1205a. (1) The owner of a school of cosmetology, or the  
2 owner of a cosmetology establishment that conducts an  
3 apprenticeship program, shall ensure that the school or  
4 apprenticeship program meets all of the following requirements:

5           (a) A student or apprentice is not required to be in  
6 attendance for more than 40 hours per week.

7           (b) A daily record of the attendance of each student or  
8 apprentice is maintained and a copy of the record is sent to the  
9 department ~~monthly~~ **on request**.



1       (c) A record of the enrollment of each student or apprentice  
2 is maintained and a copy of the record is sent to the department  
3 monthly.

4       (d) ~~(e)~~ A grading system for students or apprentices is  
5 established.

6       (e) ~~(d)~~ A student or apprentice is required to pass an  
7 examination before the owner of the school or establishment  
8 certifies to the department that ~~he or she~~ **the student or**  
9 **apprentice** has completed training.

10       (f) ~~(e)~~ A student or apprentice is ~~only~~ permitted to practice  
11 on members of the public **only** after ~~he or she~~ **the student or**  
12 **apprentice** completes ~~at least~~ **not less than** 350 hours of  
13 instruction in the general cosmetology curriculum, including both  
14 theory and practical hours. A student or apprentice in a natural  
15 hair cultivation, manicuring, skin care, or electrology curriculum  
16 may ~~only~~ practice on the public **only** after ~~he or she~~ **the student or**  
17 **apprentice** completes ~~at least~~ **not less than** 1/4 of the hours  
18 required by the applicable curriculum, including both theory and  
19 practical hours.

20       (g) ~~(f)~~ Before the school begins training a student, or the  
21 establishment accepts an apprentice, the owner of the school or  
22 establishment obtains proof that the student or apprentice has a  
23 high school education, or the equivalent of a high school  
24 education. This subdivision does not apply to a student who is  
25 enrolling in a program offered as a part of the regular curriculum  
26 of a public school and approved by the state board of education.

27       (h) ~~(g)~~ Before the school begins training a student, or the  
28 establishment accepts an apprentice, the owner of the school or  
29 establishment submits an application to the department on behalf of



1 the student or apprentice. The owner of the school or establishment  
2 shall retain a copy of the proof of education described in  
3 subdivision ~~(f)~~, **(g)**, if applicable, and the application described  
4 in this subdivision in the records of the school or establishment  
5 until the student or apprentice applies for examination to obtain a  
6 license.

7 (2) The owner of a cosmetology establishment that conducts an  
8 apprenticeship program shall not charge a fee for the teaching of  
9 cosmetology services to apprentices on the premises.

10 (3) The owner of a cosmetology establishment where 1  
11 apprentice has been successfully trained may allow the training of  
12 additional apprentices at the establishment, except that not more  
13 than 2 apprentices may be trained at the same time.

14 (4) If the location of a cosmetology establishment where an  
15 apprenticeship program is conducted changes, the owner of the  
16 cosmetology establishment may continue the apprenticeship program  
17 at the new location if a new license is issued under section  
18 1204(4), and an apprentice who was receiving training at the  
19 original location may continue to receive training at the new  
20 location.

21 Enacting section 1. This amendatory act takes effect 90 days  
22 after the date it is enacted into law.